CHAPTER 9 · DEEP DIVE · A HOUSE DIVIDED

The 14th Amendment

The amendment that wrote citizenship and equality into the Constitution — and reshaped American law forever. 1868.

Name: _____ **Period:** _____ **Date:** _____

The amendment that wrote citizenship and equality into the Constitution — and reshaped American law forever. 1868.

What does it take to turn ‘freedom’ into ‘equal citizenship’ — and why wasn't the end of slavery enough?

Free — But Equal?

THE PROBLEM

The Thirteenth Amendment had ended slavery. But Southern states promptly passed Black Codes that denied freedpeople basic rights, and the old Dred Scott ruling still hung in the air, having declared that Black Americans could never be citizens.

Congress answered with the Fourteenth Amendment — one of the most important changes ever made to the Constitution.

“And Not This Man?”

THOMAS NAST, 1865

Nast draws a wounded Black veteran who has lost a leg for the Union, asking whether the nation he bled for will grant him citizenship. The question the 14th Amendment would answer.

“Franchise — And Not This Man?” — wood engraving by Thomas Nast, Harper's Weekly, 1865, public domain (Library of Congress).

Four Revolutions in One Amendment

WHAT IT DID

The amendment did four huge things. First, birthright citizenship: everyone born in the U.S. is a citizen — directly overturning Dred Scott. Second, equal protection of the laws for all. Third, due process — no state can take life, liberty, or property unfairly.

Fourth, it punished the old Confederacy: states that denied the vote would lose representation, and former Confederate officials were barred from office. Ratified in 1868, it made the federal government the guardian of citizens' rights against the states.

The five military districts, 1867 — map, © ShadowDog Digital Studios (SDS Digital Collection).

THE 14TH AMENDMENT, SECTION 1

All persons born or naturalized in the United States … are citizens … nor shall any State … deny to any person … the equal protection of the laws.

The Second Founding's Cornerstone

WHY IT MATTERS

The Fourteenth Amendment is the cornerstone of modern civil rights. “Equal protection” and “due process” would later be the basis for ending segregation, expanding rights, and countless Supreme Court cases down to today.

At the time, its promise went tragically unenforced for decades. But the words were now in the Constitution — waiting, like a loaded promise, to be fulfilled.

The five military districts, 1867 — map, © ShadowDog Digital Studios (SDS Digital Collection).

Read the Amendment

YOUR TURN

You'll read the key clauses of the Fourteenth Amendment and practice document analysis — pinning down exactly what each phrase does and why it mattered.